

Court No. - 32

Case :- WRIT - C No. - 24092 of 2019

Petitioner :- Abdul Ajj
Respondent :- State Of U P And 3 Others
Counsel for Petitioner :- Gaurav Pundir
Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Shashi Kant Gupta,J.

Hon'ble Saurabh Shyam Shamshery,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

" Issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 4.7.2019 passed by respondent no. 2/Electricity Consumer Grievance Redressal Forum, District Saharanpur. "

Learned counsel for the petitioner has submitted that the respondent no.3 is taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

On the contrary, Sri A.K.Saxena, learned counsel for the Electricity Department stated that while issuing provisional assessment order, a notice was issued by the Respondent No.3, Executive Engineer to the petitioner to appear before him within fifteen days and submit his objection but the petitioner failed to appear before it within the stipulated period, as such, the Respondent No. 3,

Executive Engineer was compelled to proceed further in the matter, whereas learned counsel for the petitioner has denied the receipt of such notice.

Without entering into the controversy with regard to service of notice qua provisional assessment by the department, we are of the opinion that in the interest of justice the petitioner be given another opportunity of hearing, therefore, considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 7.8.2019 at 11.00 A.M. before the Respondent No.3, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No. 3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of 30 days thereafter.

For a period of two months from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, it will be open for the Respondent No. 3 to pass final orders in the absence of the petitioner.

Order Date :- 25.7.2019

MLK